

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF BELYANSKIY AND OTHERS v. RUSSIA

(Applications nos. 65026/16 and 18 others –
see appended list)

JUDGMENT

STRASBOURG

13 October 2022

This judgment is final but it may be subject to editorial revision.



In the case of Belyanskiy and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli, *President,*
Andreas Zünd,
Frédéric Krenc, *judges,*
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 15 September 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

6. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention, which, in so far as relevant, reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:...
>
> (c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an

offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; ...”

7. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an “exceptional case” and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018). The authorities’ failure to comply with those requirements, in the Court’s view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019).

8. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility (including taking into account the three-month extension introduced by decision of the President of the Court in 2020 as a consequence of the lockdown imposed in France on account of the COVID-19 pandemic (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022)) and merits of these complaints. The Court discerns nothing in the official records submitted for it to conclude that recourse to such procedures was justified, as required by Russian law. It concludes that that the national authorities failed to comply with applicable rules of domestic procedure and considers that the applicants’ arrest and detention were not “in accordance with a procedure prescribed by law”.

9. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of

Administrative Offences, *Frumkin v. Russia*, no. 74568/12, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies, and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 178-91, 10 April 2018, concerning lack of a suspensive effect of an appeal and immediate execution of a sentence of administrative detention).

11. In view of the above findings under, the Court considers that there is no need to deal separately with the remainder of the applicants' complaints under Article 6 of the Convention concerning the alleged unfairness of the criminal (administrative) proceedings against them.

IV. REMAINING COMPLAINTS

12. In applications nos. 57194/19 and 57233/19 the applicants also raised other complaints under various Articles of the Convention.

13. The Court has examined the applications and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Saidov v. Russia* [Committee], no. 31872/19, § 23, 26 July 2022), the Court considers it reasonable to award the sums indicated in the appended table.

16. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the unlawful detention (deprivation of liberty) and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *decides* that it is not necessary to deal separately with the remainder of the applicants' complaints under Article 6 of the Convention concerning the alleged unfairness of the criminal (administrative) proceedings against them and *dismisses* the remainder of applications nos. 57194/19 and 57233/19 as inadmissible;

3. *Holds* that these complaints disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention and its Protocols as regards the other complaints raised under well-established case-law of the Court (see the appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 13 October 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	65026/16 21/10/2016	**Stanislav Olegovich BELYANSKIY** 1965	Yevgeniy Vyacheslavovich Antokhin Moscow	12/12/2015	14/12/2015	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of tribunal in view of the absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - March for Change Pushkinskaya Square, Moscow 12/12/2015 Article 19.3 § 1 of CAO, fine of RUB 1,000 Moscow City Court 22/04/2016.	3,900
2.	5162/18 12/01/2018	**Yevgeniy Andreyevich LOYKO** 1984	Konstantin Ilyich Terekhov Moscow	26/03/2017 5.40 p.m. 10/08/2019	26/03/2017 11.05 p.m. 10/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the two sets of the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Arrests of the applicant at manifestations on 26/03/2017 and 10/08/2019 (final decisions – Moscow City Court 24/07/2017 and 12/09/2019, respectively).	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	44149/19 08/08/2019	**Roman Vladimirovich LOBACHEV** 1977	Oleg Aleksandrovich Yelanchik Moscow	16/12/2018 2 p.m.	16/12/2018 7 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Public manifestation Moscow 16/12/2018 Article 20.2 § 5 of CAO fine of RUB 10,000 Moscow City Court 08/02/2019.	3,900
4.	52684/19 30/09/2019	**Aleksey Alekseyevich POLIKHOVICH** 1990	Svetlana Ivanovna Sidorkina Moscow	11/08/2019 1.30 a.m.	12/08/2019 (date of the applicant's administrative conviction; no exact time)	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The applicant was sentenced to 13 days in detention on 12/08/2019 (to be calculated from the moment of his arrest on 11/08/2019), and the appellate proceedings took place on 22/08/2019. I.e., the applicant was already serving his administrative sentence by the time the appeal court reviewed the trial judgment; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Administrative conviction under Article 20.1 §1 of CAO for participation on 10/08/2019 in Moscow in unauthorised manifestation for fair elections to Mosgorduma/ 13 days of administrative detention/ Moscow City Court on 22/08/2019 (appeal decision).	3,900

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5.	57194/19 23/10/2019	**Roman Sergeyevich YARGUNOV** 1995		27/07/2019 7.20 p.m.	29/07/2019 (date of the applicant's administrative conviction; no exact time)	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - lack of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 6.1 of CAO for participation on 27/07/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative detention of 7 days/ Moscow City Court on 07/08/2019 (appeal decision).	3,900
6.	57233/19 23/10/2019	**Klimentiy Sergeyevich RYAZANTSEV** 1999		27/07/2019 7.50 p.m.	29/07/2019 (no exact time; after the hearings in the Troitskiy District Court of Moscow)	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - lack of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 6.1 of CAO for participation on 27/07/2019 in Moscow in manifestation for fail elections to Mosgorduma administrative fine of RUB 15,000 Moscow City Court on 28/08/2019 (appeal decision).	3,900
7.	10083/20 10/02/2020	**Kirill Pavlovich SKRIPIN** 1994		10/08/2019 2.50 p.m.	10/08/2019 8.00 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 5 of CAO for participation on 10/08/2019 in Rostov-on-Don in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000/ Rostov Regional Court on 28/10/2019 (appeal decision).	3,900

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8.	12659/20 25/02/2020	**Stanislav Andreyevich KORENYUGIN** 1995	Grigoriy Sergeyevich Chervonnyy Moscow	27/07/2019 03/08/2019	27/07/2019 03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in both sets of the administrative-offence proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at manifestations on 27/07/2019 and 03/08/2019 (final decision - Moscow City Court, 26/11/2019)	3,900
9.	14016/20 27/02/2020	**Andrey Sergeyevich STARIKOV** 1998	Bochilo Anna Yevgenyevna Barnaul	10/08/2019	11/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Arrest of the applicant at a manifestation on 10/08/2019 (final decision – Moscow City Court 24/09/2019)	3,900

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10.	15046/20 12/03/2020	**Anton Sergeyevich LVOV** 1988	Irina Aleksandrovna Yatsenko Moscow	10/08/2019 6.10 p.m.	10/08/2019 10 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Arrest of the applicant on 10/08/2019 at a manifestation (final decision – Moscow City Court 12/09/2019)	3,900
11.	19307/20 26/03/2020	**Yuriy Borisovich ZUYEV** 1974	Natalya Andreyevna Balog Krasnoyarsk	03/08/2019 6.05 p.m.	04/08/2019 2.10 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17,§ 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - in view of the absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 03/08/2019 (final decision – Moscow City Court 30/09/2019).	3,900

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12.	21455/20 13/05/2020	**Tamerlan Supyanovich KHUNAYEV** 1995	Mariya Olegovna Eysmont Moscow	03/08/2019 5 p.m.	04/08/2019 3 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 03/08/2019 (final decision – Moscow City Court 14/10/2019).	3,900
13.	25754/20 12/05/2020	**Ivan Petrovich SHEVLYAGIN** 2000	Markin Konstantin Aleksandrovich Velikiy Novgorod	03/08/2019 3.15 p.m.	03/08/2019 10.29 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others, cited above, §§ 121-22).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 03/08/2019 (final decision – Moscow City Court 14/11/2019).	3,900

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14.	26519/20 12/02/2020	**Artem Igorevich BORISOV** 1995	Mariya Valeryevna Chashchilova Moscow	10/08/2019	10/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 10/08/2019 (final decision – Moscow City Court, 04/09/2019).	3,900
15.	26863/20 13/05/2020	**Konstantin Vladimirovich KLEMANSOV** 1975	Natalya Aleksandrovna Nechiporenko Moscow	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 03/08/2019 (final decision - Moscow City Court 14/10/2019).	3,900
16.	27073/20 11/06/2020	**Mariya Vladimirovna SARABYANOVA** 1993	Nikonov Fedor Andreyevich Moscow	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia,	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017).	manifestation on 03/08/2019 (final decision – Moscow City Court 14/11/2019).	
17.	28424/20 06/04/2020	**Ilya Andreyevich SMIRNOV** 1991	Chashchilova Mariya Valeryevna Moscow	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 03/08/2019 (final decision - Moscow City Court 10/10/2019).	3,900
18.	30688/20 04/07/2020	**Dmitriy Anatolyevich PETRENKO** 1972	Oleg Aleksandrovich Yelanchik Moscow	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO)	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 03/08/2019 (final decision – Moscow City Court 04/10/2019).	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						(see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017).		
19.	30513/20 04/07/2020	**Mikhail Mikhaylovich SMIRNOV** 1976 **Dmitriy Yevgenyevich AVERYANOV** 1973	Ernest Aleksandrovich Mezak Nantes	03/08/2019	03/08/2019	Applicants taken to the police station as administrative suspects: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Applicants taken to the police station as administrative suspects for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicants' arrest at a manifestation on 03/08/2019 (final decision – Moscow City Court 04/10/2019).	3,900

[1] Plus any tax that may be chargeable to the applicants.